

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 13, 2026
8:30 AM/1:30 PM

3. RICHARD FISCHER V. DINA FISCHER

21FL0070

On May 26, 2026, Petitioner filed a Request for Order (RFO) requesting a date for a prove-up hearing. All required documents were personally served on July 14, 2026.

According to Petitioner, a Stipulation and Order on reserved issues was filed on December 9, 2025. The stipulation contained a typographical error stating that judgment had been entered in June of 2025 though that is not the case. Petitioner now requests a hearing date for a prove up hearing.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #3: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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4. DAWNA LYNN HAYHURST V. VINCENT E. HAYHURST

26FL0482

On May 21, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support, attorney's fees, and an order to sell the marital residence. She filed her Income and Expense Declaration concurrently therewith. All required documents were personally served on June 19th.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on July 23rd.

Petitioner filed her reply declaration on August 5th, it was served on August 4th.

Petitioner is requesting spousal support and need-based attorney's fees in the amount of \$8,000. She also requests an order to sell the marital residence. She would like to propose the names of three real estate agents and Respondent to choose one of the three within 10 days. She asks that the parties be ordered to defer to, and cooperate with, the listing agent in determining the price, necessary repairs and cleanup. Once sold, she asks that each party receive a distribution of \$188,000 and the remaining proceeds to be placed in a trust account pending further agreement of the parties or order of the court.

Respondent opposes the request for spousal support and the requested attorney's fees. He also asks that the court deny, or at least postpone, the sale of the marital residence until all community property issues have been resolved.

Regarding the sale of the marital residence, it is a longstanding tenant of the law that the court shall divide the community estate of the parties equally. Cal. Fam. Code 2550. Inherent in the court's authority to ensure that community assets are divided equally, the court holds broad discretion to "[a]t any time during the proceeding...order the liquidation of community or quasi-community assets so as to avoid unreasonable market or investment risks..." Cal. Fam. Code § 2108.

Here, the court is concerned with the potential loss of homeowners insurance on the residence and Petitioner's inability to keep the residence in good condition to preserve the value of the asset. Furthermore, given that the parties will only receive a portion of the sale proceeds and the rest will be placed in trust, the court finds that this should resolve Respondent's concerns over separating the rest of the community assets and debts prior to selling the home.

In light of the foregoing, the parties are ordered to place the marital residence up for sale forthwith. Petitioner is to propose the names of three real estate agents to Respondent

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no later than August 20, 2026. Respondent shall choose one of the three and inform Petitioner of his choice within ten days of his receipt of Petitioner's list. The parties are ordered to defer to, and cooperate with, the listing agent in selecting the listing price and determining which, if any, repairs and cleanup are necessary to prepare for the sale. Upon completion of the sale, each party is to receive a distribution of \$188,000. The remaining funds are to be placed into Petitioner's attorney's client trust account until written agreement of the parties or further order of the court.

Turning to the issue of support, generally speaking, a married person has a duty to support his or her spouse. Cal. Fam. Code § 4300. However, the court maintains broad discretion in determining whether a support award is warranted and if so, the amount and duration thereof. In re Marriage of McLain, 7 Cal. App. 5th 262, 269 (2017). Here, given that there is not much disparity between the monthly incomes of the parties, any order of support as calculated by Xspouse would be nominal. Furthermore, it would result in a payment from Respondent to Petitioner however, Respondent is paying monthly rent of \$1,000 while Petitioner is living rent free in the marital residence. For these reasons, the court is setting temporary spousal support to \$0.

Finally, regarding the request for attorney's fees, in the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

As stated above, there is little disparity in the monthly income of the parties. Furthermore, the court does not find that Respondent has the ability to pay for both his attorney and Petitioner's. As such, the request for attorney's fees is denied without prejudice.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENATIVE RULING #4: THE PARTIES ARE ORDERED TO PLACE THE MARITAL RESIDENCE UP FOR SALE FORTHWITH. PETITIONER IS TO PROPOSE THE NAMES OF THREE REAL ESTATE AGENTS TO RESPONDENT NO LATER THAN AUGUST 20, 2026. RESPONDENT SHALL CHOOSE ONE OF THE THREE AND INFORM PETITIONER OF HIS CHOICE WITHIN TEN DAYS OF HIS RECEIPT OF PETITIONER'S LIST. THE PARTIES ARE ORDERED TO DEFER TO, AND COOPERATE WITH, THE LISTING AGENT IN SELECTING THE LISTING

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PRICE AND DETERMINING WHICH, IF ANY, REPAIRS AND CLEANUP ARE NECESSARY TO PREPARE FOR THE SALE. UPON COMPLETION OF THE SALE, EACH PARTY IS TO RECEIVE A DISTRIBUTION OF \$188,000. THE REMAINING FUNDS ARE TO BE PLACED INTO PETITIONER'S ATTORNEY'S CLIENT TRUST ACCOUNT UNTIL WRITTEN AGREEMENT OF THE PARTIES OR FURTHER ORDER OF THE COURT.

THE COURT IS SETTING TEMPORARY SPOUSAL SUPPORT TO \$0.

THE REQUEST FOR ATTORNEY'S FEES IS DENIED WITHOUT PREJUDICE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.